



SCHOOL OF LAW

THE RIGHT OF PUBLIC PARTICIPATION FOR ENVIRONMENTAL PROTECTION IN THE CITY OF DEBREMARKOS: THE LAW AND THE PRACTICE

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ABSTRACT

The public participation is the process by which an organizations and governmental entity consults with the interested or affected individuals in the environmental protection activity and one common form of public participation is through the activities of governmental agencies and non-governmental organizations and also individuals. There is lack of commitment of environmental agencies to protect the environment and also lack of public awareness. The objectives administered in this study is to inform and to make initiate the relevant governmental authorities and also to find out the efforts if any made by the relevant government environmental authorities to enhance public public awareness on the right of public participation and finally make recommendations by assessing laws and practices.

The research methodology used in the study is qualitative non-documentary methodology, primary and secondary sources are used in the study and the analysis part of the research is focuses on the law and the practice of public participation on the environmental protection. The practice of providing non-formal environmental education and creation of awareness in relation to the public participation on the environmental protection in the city it is implemented by preparing different documents and calling public meeting and by celebrating environmental day in the city may 28 annually whereas the practice is unsatisfactory and very limited. Therefore the city environmental protection office should prepare a widely an environmental education and awareness creation plat form for the public , this is by implementing such as informal small group meeting in each kebele's of the city, focus group, different workshops etc. In relation to solid waste management of the city the study recommends that urban administration should prepare the installations of marked waste bins on the street which the public gathered densely and giving awareness to the public how to use it. In the environmental impact assessment of the city the urban administration with the Environmental protection office of the city should make impact study report accessible to the public and solicit comment.

ACRONYM

Art	Article
EPA	Environmental protection Authority
EPE	Environmental policy of Ethiopia
EIP	Environmental Impact Assessment
FDRE	Federal Democratic Republic of Ethiopia
GHG	Green House gas
IAP	Interested and Affected Parties
NGO	Non-Governmental Organization
P-10	Principle 10
UN	United Nations

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CHAPTER ONE:

1. INTRODUCTION

1.1. Background of the Research

The public in public participation normally refers to, groups, or organizations that may experience benefit or harm or otherwise choose to become informed or involved in an Environment.¹ Public participation is the process by which an organizational and governmental entity consults with interested or affected individuals in the environmental protection.² People's participation is significant in all environmental protection to avoid pollution of air and improper utilization of water and soil and also environmental degradation.³

Environment is normally the physical surrounding and it includes outer space of the earth as well as immediate province of living organism, the biosphere and includes the biotic factors of land, water, atmosphere, climate, sound, odors and the others biotic factors humans animals.⁴ Public participation includes the full range of interested and affected parties including corporation, non-governmental organization, individuals, and the roles of public official's agencies in the environmental protection.⁵

One common form of public participation is through the activities of governmental agencies, they are playing an important role in protecting the environment, government undertakes with planning, protection and coordination of the environment and also implements forestry programs, prevention and control of pollution and government also creates awareness among the public and also participating the public for the protection of the environment.⁶

¹ Thomas Deitz, public participation in Environmental assessment, The National Academic press, Washington Dc, 2008, p-10 [Here in after referred to as, Thomas Deitz public participation in Environmental Assessment]

² Available online at: www.intellitics.com/blog/03/24/what-is-public-participation/ (Accessed on December 21, 2016)

³ Gouri Suresh, Environmental Studies and ethics, I.K. International publishing HOUSE, 2007, P-64 [Here in after referred to as, Gouri Suresh, Environmental Studies and ethics]

⁴ Ibid

⁵ Ibid

⁶ Available online at: www.preservearticles.com/201102244196/role-of-government-and-the-problems-faced-in-protecting-our-environment.html (Accessed on December, 21, 2016)

The other form of public participation is through non-governmental organizations is often seen as a significant for organizing community support, increasing mass awareness with in the public and also they can make people aware of their environmental problems.⁷

The environmental challenges are linked by common causal factors; the climate change may Couse, changes rainfall patterns and it might have serious impacts on food production and spread tropical disease so the public should participate in to environment and the problem in the right of public participation is lack of initiation and technical support for the public by the environmental authorities andalso lack of public experience in the participatory process and lack of public awareness for the environmental protection.⁸ Regular public participation shows that peoples values and their views are considered for their environment and quality of life and people can feel part of the community in such manner, individuals and community groups can become more active and more responsible for their environment and the quality of life and this leads to enhancement of good governance and governmental authorities can make better relations with the public.⁹

There are various levels of public participation in the environmental protection. Among that; providing information, Consultation or obtaining feedback, Involvement of the public on the environmental protection, Collaboration or working together with the public in environmental protection and at the last empowerment.¹⁰ There are also prerequisite for effective public participation among that; access to information, education about the environmental factors that mitigate it, post-project analysis and monitoring and lastly recourse to independent tribunal for redress.¹¹

When we consider Environmental Laws at the international levels there are different international conventions and conferences among that; Stockholm declaration in 1972, The convention held in Rio de janerio,Brazil in 1992 and also agenda 21, the convention on climate

⁷ Ibid

⁸ Available online at: <http://www.gdrc.org/decision/Interlinked.html> (Accessed on December, 21, 216)

⁹ The Arhus convention,2009,U.K.Department of the Environment and Transportation

¹⁰ Available online at:<http://www.epa.gov/international-cooperation/public-participation-guide-selecting-right-level-public-participation>(Accessed on December, 21,216)

¹¹GirmachewAlemu (ph.D.), Essays on Environmental rights, vol.5,july 2012,p-31[Here in after referred to as GirmachewAlemu (ph.D.), Essays on Environmental rights)

change and the convention on desertification.¹² Ethiopian constitution and proclamation of environment is will considered

1.2. Statement of the problem

The basic problem in the right of public participation is most of the time the relevant governmental authorities especially the Ministry of Environmental Forest and ClimateChange they did not give due consideration for the right of public participation and since lack of public participation is a significant barrier in the sustainable development, the main part of public participation is giving information and awareness however there is deficiency to access awareness to the public by the environmental authorities due to this most of public does not have experience in the participatory process.

1.3. Objectives of the Research

1.3.1. General objectives

To assess the level of the right to public participation for the environmental protection in the city of Debre Markos.

1.3.2. Specific Objectives

1. To inform and to make initiate the relevant governmental authorities especially environmental authorities for the practical implementation of the right of public participation for environmental protection.
2. To find out the efforts if any made by the relevant government environmental authorities to enhance public awareness on the right of public Participation.
3. Finally to make recommendations by assessing laws and practices.

1.4. The Research Questions

1. Is there proper implementation of the right of public participation for the environmental protection in the city?

¹²Benimadhabchatarjee, Environmental laws implementation, 2ndeds, pub. By Deep publications pvt ltd, 2002, p-21 [Here in after referred to as Benimadhabchatarjee, Environmental laws implementations]

2. Do the relevant governmental authorities of the environment have the commitment to enhance and implement the right of public participation?

3. What kinds of activities have been taken for the enhancement of public awareness on the right of public participation for the environmental protection if any, made by the environmental authorities?

1.5. Significance of the Research

Since the research focuses on the right of public participation it will remind and initiate environmental authorities to give due consideration for the right of public participation for the environmental protection and also it will enhance their commitment and implementation of environmental protection.

It will enhance sustainable development since the research focuses on the law and the practice and it will also increase the stake holder's awareness on the existing environmental laws which focuses on the right of public participation and difference between the laws and practices.

The research can serve as reference for the further broader studies on the right of public participation for the environmental protection.

1.6. Scope of the research and Limitations

The scope of the research is limited to the Debre Markos City that focuses on the laws and the practice of the right of public participation for the environmental protection.

In conducting the research, there are different limitations such as lack of financial, lack of sufficient computer in the university and also since the research is practical its difficult to practice in terms of time to obtaining data from environmental authorities.

1.7. Research Methodology

1.7.1. Research Strategy

The Research methodology I administered in this study is that, qualitative non-documentary research methodology. Henceforth, the research focuses on the laws and the practices of public participation in Debre Markos City

1.7.2. Types and Sources of Data

Primary and secondary sources used in this research. From primary sources interviews of the relevant governmental authorities and field observations are taken into account and also different laws; constitutions, proclamations, guidelines are taken into account. On the other side, as secondary sources, different books, written materials, various sources from internet accesses are taken into account.

1.8. Organization of the paper

The research is organized in to five chapters. The first chapter deals with the introductory part of the study which covers the proposal of the research. The second chapter discusses the concept of the right of public participation and environmental protection and shows the roles of government and non-governmental organizations in the protection of the environment. And also incorporates levels of public participations.

The third chapter discusses environmental legal frame work from international level different conventions and From Ethiopian legal system different proclamations on the right of public participation on the environmental protection.

The fourth chapter elaborates Analysis and Interpretation of data of the research. The fifth chapter contains conclusion and recommendation of the research.

CHAPTER TWO:

2. THE GENERAL CONCEPT OF PUBLIC PARTICIPATION IN ENVIRONMENTAL PROTECTION

2.1. Definition and Significance of public public participation in environmental protection

The public in public participation normally refers to, individuals, groups, or organizations that may experience benefit or harm or otherwise choose to become informed or involved in an Environmental protection.¹³ When we define public participation it is the process in which an individuals, organizational entity and governmental agencies participate in the environmental protection.¹⁴ Public participation is the real involvement of all the community and it is the interaction between governmental agency, civil society and public.¹⁵ And public participation in environmental protection also incorporates corporations, non-governmental organizations, individuals and also considers the roles of environmental agencies.¹⁶

Public participation is not simply necessary thing to do; it actually results in better out comes and better governance when done in a meaningful way, in this manner communities develop long term capacity to solve and manage challenging social issues, and also overcoming long standing differences and miss understanding.¹⁷ When we mention environment, it incorporates all materials whether in their natural or modified by the humans, that means external spaces and the interactions which affect the quality or quantity welfare of humans and any other living things, including but not restricted to, land, atmosphere, weather and climate, water , etc.¹⁸ When we consider environmental protection it is generally a practice of protecting the natural environment

¹³ Thomas Dietz ,public participation in Environmental assessment, National academic press Washington DC,2008,p-15(Here in after reffered to as Thomas Deitz,Public participation in Environmental Assessment)

¹⁴ Available online at: www.intellitics.com/blog/2008/03/24/what-is-public-participation/(Accessed on:December 21, 2016)

¹⁵ Available online at:www.saflii.org/za/Journal/PER/2008/12.html(Accessed on December, 21, 2016)

¹⁶ Ibid

¹⁷ Available online at <http://www.epa.gov/International-cooperation/public-participation-guide-Introduction-public-participation> (Accessed on December, 21,2016)

¹⁸GirmachewAlemu(ph.D.),Essays on Environmental Rights,2012, p-4[Here in after reffered to as, GirmachewAlemu, Essay on environmental Rights]

through governmental, non-governmental organizations, voluntary individuals, corporations for the benefit of the environment and human being.¹⁹

When we consider the main benefits of public participation it is sustainable development, public participation plays a great role in sustainable development in bringing together economic, social and environmental objectives, sustainable development can be achieved only through the involvement of all stake holders on the environmental protection, this indirectly raise public awareness. The other benefits of public participation are conflict management, public participation will enhance conflict management without long period process, and it prevents conflicts early on before the bringing effect on the environment. For the environmental protection are best handled by the participation of all concerned citizens on the environmental issues all concerned parties should have appropriate access to information concerning the environment that is held by public authorities specially by focusing on information on hazardous emission which endanger to the environment and also effective access to judicial and administration proceeding, including redress and remedy, should be provided.²⁰

2.2. Prerequisite for the effective public participation

For the public participatory efforts becoming effective and meaning full there are different preconditions.²¹

1. Access to information

At this time information is the backbone of public participation in environmental protection but when we say information is the backbone, it should be accurate, affordable, accessible, and also it should be timely and in comprehensive manner.²²

2. Education about the environment

Education plays greater role in public participation for the environmental protection that means the education may be given through media, meeting with the society, and by distributing

¹⁹Gourisuresh, Environmental studies and ethics, I.K. International publishing House. 2008, p-64 [Here in after referred to as G Essay on environmental right]

²⁰Available online at: www.biodiversity.ru/coast_learn/pp-eng/benefits.html (Accessed on December 21, 2016)

²¹Girmachew Alemu (ph.d.), Essay on Environmental Rights, 2012, p-31 [Here in after referred to as Girmachew Alemu, Essay on environmental rights]

²² Ibid

environmental protection pamphlets etc. This indirectly enhances public awareness about participating in environmental process.

3. Post-project analysis and monitoring

Public participation on the project it is not subjected to only up to approval of the project by the government but also public participation continues after the project is approved by the government, by the following up the project when environmental deficiencies are identified, however for effective following of the project the public should have access to operational data of the approved project.

4. Recourse to independent tribunals for redress

When the project harm the environment and violate the right of the surrounding communities or individuals and also when the project violate the approval fulfillment there should be appropriate forum and this forum should be impartial and independent body to provide equitable remedies and any individuals or a group of community when they are affected and neglected by the project they have the right for equitable compensation or redress.²³

2.3. Roles of governmental and non-governmental organizations in the public participation

1. Role of governmental agencies

The relevant governmental agencies for environmental protection, they has responsibility on the environmental protection, the relevant governmental agencies should take the practice of planning, protection, and coordination of the environment and also the relevant governmental bodies should take in to account forestry programs, conservation of the soil and wild life, prevention and control of pollution, regeneration of degraded areas and should under taken environmental impact assessment prior to the implementation of any project, which can damage the environment. Generally the relevant governmental agencies have the responsibility to protect the overall environment.²⁴ In addition to the previous roles of governmental agencies has the responsibility to provide assistance to the organizations implementing on the protection of the

²³ Ibid

²⁴ Available online at: www.preservearticles.com/201102244196/role-of-government-and-the-problems-faced-in-protecting-our-environment.Html (Acced on December, 21, 2016)

environment and also ^{should} promotes researches related with the environmental protection and the government empowered to take legal actions against offenders engaged themselves in activities, which deteriorate and pollution to the environment by practicing like large scale deforestation, cutting of trees from national parks and also illegal killing of wild animals for personal income and benefit.²⁵

2. The role of non-governmental organizations

Non-governmental organizations or voluntary organizations play important roles in the protection of the environment and also they played great role by participating on the environmental protection in collaboration with the public. Non-governmental organizations are free from governmental control and they can take decisions without any interference by their own themselves and they can undertake activities which they like, as the appropriate to the environment.²⁶

The non-governmental organizations have widest chance to meet with the masses of public directly, due to this they are playing great role in creating environmental awareness with in the public and by giving environmental education and awareness about the process of environmental protection by sharing their own great experience. And finally these non-governmental organizations they can make the people aware of their own environmental problems to undertake precondition before environment becomes polluted.²⁷

2.4. Different levels of public participation

There are different levels of public participation among that the well-known levels of public participation are; Information, Consultation, Involvement, Collaboration, and Empowerment.

1. Information

It is providing information to the public and it is simply informing the public about the environmental activity conducted in a certain area. And it is not persuading the public rather providing information and at this time the environmental agency has to be as an honest broker of

²⁵ Ibid

²⁶ Ibid

²⁷ Ibid

information to the public and should provide information what the public fully understand about their environmental activity.

Generally at this level the public is passive and only receiving information and the information is provided by different means of dissemination of information, such as press release, advertisement, public display, newspaper, site visits, and also printed materials such as brochures, newsletter etc.

Generally at the information level the goal is informing the environmental activity to the public through understandable manner without creating any confusion.²⁸

2. Consultation

At this level the agencies taking the public feedback on the environmental activity, which means consultation is depend on the information given by the environmental agencies. At the consultation level the agencies waiting public feedback to involve in the environmental protection. And it is inviting the public to consult the public and in the consulting the public there is no guarantee to say public concerns and ideas will be taken into account because citizens' concerns and ideas are utilized after consultation. And one should be careful that consultation should not be used in the wrong way rather for full public participation. At this level of participation the agencies receiving the feedback by different menses such as public meeting, public hearing, through internet services, survey and also by informal small group meeting, neighborhood meeting.²⁹

3. Involvement

It is the direct involvement of the public in the environmental protection activity and at this level the public is utilized as an input in the environmental protection activity, the public would take as one part in the environmental protection and the public concerns are kept in the environmental protection activity and also it is the level at which the public share its concern to the environmental agencies in the environmental protection activity.³⁰

²⁸ Available online at: <http://www.epa.gov/international-cooperation/public-participation-guide-selecting-right-level-public-participation> (Acced on December, 21, 2014)

²⁹ Ibid

³⁰ Ibid

4.Collaboration

It is the involvement and activities of the public and environmental agencies in the overall protection of the environment and it is the effective involvement of the public in all key environmental protection activity and also it is the highest form of public participation, at this level the public has equal role with the agencies in all environmental protection activity.

There should be an agreement and common goal between the public and environmental agencies and the public has independent right to advocate and complain for the solutions on the environmental protection activity and also there should be effective partnerships between the public and the agencies in all aspects of environmental protection activity.

5. Empowerment

At the empowerment level the public has full opportunity to decide whatever on his own interest and the governmental agencies at this level implement only what the public decided. Governmental agencies most of time rarely conduct on the public participation at the empowerment level.

There are goals and promise at the empowerment level when we consider the goal it is to create a program that allows the public to make a rational decisions without deteriorating the environment and the promise at the empowerment level is the agency will implement what the society decides.³¹

³¹ Ibid

CHAPTER THREE

3. THE INTERNATIONAL AND ETHIOPIAN ENVIRONMENTAL LEGAL FRAMEWORK

3.1. International Environmental Conventions and Conferences

At the international level there are different environmental conventions and conferences among that there are major environmental conventions and Conferences like; Stockholm conventions June, 1972, Rio declaration on the environment and development, at Rio de Janeiro June 1992 and also convention on climate change and convention on a combat against desertification.

3.1.1, Declaration of the United Nations conference on the human environment, at Stockholm June, 1972

The United Nations conference on the human environment which held at Stockholm from 5 to 16 June 1972, the conference has depended on the common outlook and principles to initiate guiding all the people of the world for the conservation and preservation of the world environment, the unique characteristics of this conference is it turned the environment into a major issue at the international level, in its principle 1 the right of people to live in an environment of a quality that permits a life of dignity and wellbeing and also in its principle 2 of the declaration called for the protection of water resources for the benefit of present and future generations.³²

And also the declaration has described states responsibility to exploit their own natural resource in the agenda 21 of the declaration it stating that states have responsibility to ensure that any activities undertaken to exploit their own natural resources did not cause damage to the environment of other states even if they have to exploit their own natural resources which stated in the UN charter. And also the Stockholm declaration also incorporates the effective management and planning of global resources in its principle 1, 6, 7, 13 and also transboundary pollution in the principle 24 of the declaration. This and other principles of the Stockholm declaration make the declaration the first conference which most of its principles held on environmental protection.³³

³² www.unep.org/documents.multilingual/default.asp?documented=97&article=1503

³³ Ibid

3.1.2, Rio Declaration on environment and development, at Rio de Janeiro June,1992

The United Nations conference on environment and development, at Rio de Janeiro which held from 3 up to 14 June 1992. There are different achievements of Rio declaration among that Principle 10 is well known for its incorporation of public participation in environmental protection activities, it promotes public participation as a right to all concerned citizens, and also promotes right of access to information and justice in environmental matters and the other achievements of Rio declaration is agenda 21, it gives promotion for sustainable development and this sustainable development it informs states governments to participate all of the public by different social groups like women, children, young people, indigenous peoples, local governments, NGO, worker association, in the sustainable development plan and promotes sound information, improving access to information and also precautionary measures and environmental impact assessment principles.³⁴

Principle 4 of the declaration provides to achieve environmental development, sustainable development. Principle 7 of the declaration is it talks about states shall cooperate in a spirit of global partnership to protect and conserve, healthy of earths ecosystem. Principle 17 is stipulates that environmental impact assessment should be under taken as national instrument for proposed activities that have significant adverse impact on environment.³⁵

3.1.3. The United Nation Conference on Desertification's in 1977

The conferences on desertification's, it is the first conference which gives recognition to the desertification as a whole part of international problem. The immediate intention of the conference was the sahelian drought of the 1970 which raise greater questions and the conference recognized desertification as a global problem and they are rejecting the view of desertification is only the expansion of the desert area to the neighboring land.³⁶

The conference has made detailed recommendations on the preparation of national plans to combat desertification and also it recommends national action plan should be strengthen national and local capabilities in environmental planning and management of desertification however its

³⁴[www.unep.org/documents/default.asp? Documented=78&articled=78&articled=1163](http://www.unep.org/documents/default.asp?Documented=78&articled=78&articled=1163)

³⁵ Ibid

³⁶Girmachew Alemu (phd), Essay on Environmental rights, 2012 p-98 [Here in after referred to as Girmachew Alemu Essay on environmental rights]

plan of action did not succeed in reversing desertification due to lack of financial resources, failure to integrating desertification plans in national desertification plans.³⁷

3.1.4, TheUnited Nations Framework Convention on Climate Change

The United Nations framework convention on climate change has been signed by different states during earth summit in 1992 and interred in to force on 1995, negotiation has been started by the protocol which linked to existed treaty but standing in its own. When consider its objectives it's to stabilize green gas concentration in the atmosphere to prevent dangerous anthropogenic inference with the climate system.³⁸

The framework has no binding limits on the greenhouse gas emission and contains no enforcement mechanisms for the individual countries instead the framework outlines how specific international treaties may be negotiated to set binding onthe greenhouse gases. Kyoto protocol was adopted in 1997; the main purpose of the protocol was to provide binding targets on greenhouse gas emission for the world's leading economies to be flexible in meeting the targets and also to recognize that commitments under the protocol would vary from country to country. One of which is set by United Nations framework convention on climate change was to establish national greenhouse gas (GHG) emission and removal.³⁹ When we consider the united nations framework convention on climate change especially at current time the convention recognize that the developed and industrialized nations have the greater share at the current and historic emission therefore they have burden of in reducing harmful emission .⁴⁰

3.2, ETHIOPIAN ENVIRONMENTAL LAWS ON THE PUBLIC PARTICIPATION

3.2.1, The 1995, Federal DemocraticRepublic of Ethiopian Constitution

The FDRE Constitution has recognized the right of public participation and also used as the bases for the people's rights and for the enactment of proclamation, policies and guidelines whose recognized the right of public participation.

³⁷ Ibid

³⁸ [www.global issues.org/articles/521/un-framework-convention-on-climate-change](http://www.globalissues.org/articles/521/un-framework-convention-on-climate-change)

³⁹ Ibid

⁴⁰ Ibid

The constitution has provides the right for nationals to participate in the national development and especially they have the right to be consulted in particular with respect to policies and projects affecting the public.⁴¹ The constitution also provides a basis for the environmental rights of to clean and healthy environment and also recognized a right to all person who have been displaced or whose livelihoods have been adversely affected as a result of state programs have the right to commensurate monetary or alternative means of compensation including relocation with adequate state assistance.⁴²

The FDRE Constitution also declares about the environmental objectives; it stipulates that the government or the relevant governmental authorities shall endeavor to ensure that all Ethiopians live in a clean and healthy environment and also the peoples have the right to full consultation and to expression of view in the planning and implementation of the environmental policies and projects that affect them directly.⁴³

3.2.2, Ethiopian Environmental Proclamation

Based on the constitution the house of peoples representatives has been enacted different proclamations based on its environmental categories.

1. Solid waste management proclamation No. 513/2007

The preamble part of the proclamation it incorporates the right of public participation as its main objectivesand it is mentioned that it is essential to Promote community participation in order to prevent the adverse effect of environmental pollution which caused by the solid waste and to enhance the benefits resulting from solid waste management and action plans of solid waste management designed and implemented at the lowest administrative units of urban administration.⁴⁴ When we see the right of public participation in its main provisions, the urban administrative authorities has the responsibilities to planning and carrying out public awareness raising activities to the public.⁴⁵

⁴¹ FDRE Constitution,1995,Art 43(2)

⁴² Id, Art 44(1)(2)

⁴³ Id, article 92(1)(3)

⁴⁴ Solid waste management proclamation,2007,Federal NegaritGazetta, proclamation No.513 ,13th year, No.13, at the preamble part of the proclamation[Here in after reffered to as:proclamation No.513/2007]

⁴⁵ Proclamation No.513/2007, Art.5(4)(d)

And also it imposes the responsibilities on the urban administration in stating that urban administration have responsibility to ensure the participation of the lowest administrative levels and their respective local communities in designing and implementing their respective solid waste management plans and also the urban administrative authorities has responsibilities to planning and carrying out public awareness raising activities.⁴⁶

2. Environmental Impact Assessment proclamation No. 299/2002

The preamble part of the proclamation, it stipulates that environmental impact assessment is to bring about administrative transparency and accountability, as well as to involve the public in the planning and decision taking on developments which affect them and its environment.⁴⁷ Generally when we see the preamble it is to bring implementation of environmental rights and public participation. Public participation is mandatory in the Environmental Impact Assessment process and the proponent who submits an environment impact study report to the competent authority must consult the public on the likely environmental impact of the project.⁴⁸

The Authority or the relevant regional environmental agency shall make any environmental impact study report accessible to the public and solicit comments on it and also the authority or the relevant regional environmental agency shall respect and incorporated the comments of the community likely to be affected by the implementations of the project shall incorporated into the environmental study report as well as in its evaluation.⁴⁹ Generally the environmental impact assessment proclamation has incorporated the right of public participation principle in the impact assessment of the environment especially on the various projects which may affect the environment and also the community around those projects.

3. Environmental pollution control proclamation No. 300/2002

⁴⁶Id. Art.5 (1).

⁴⁷Environmental Impact Assessment Proclamation,2002,Federal NegaritGazetta, proclamation No,299,9th year, No. 11, At the preamble part of the proclamation.[Here in after referred to as: Proclamation No.299/2002]

⁴⁸ Id

⁴⁹Id.Art. 15(1),(2)

The proclamations incorporated different articles on pollution control management of hazardous wastes, chemicals and radioactive substances, environmental standards, the right and duties of environmental inspectors and penalties

Any person shall have without the need to show any vested interest the right to lodge a complaint at the authority or the relevant regional environmental agency against any person allegedly causing actual or potential damage to the environment and also when the authority or the relevant regional environmental agency against any person allegedly causing actual or potential damage to the environment.⁵⁰ And when the authority or regional environmental agency fails to give the decision within thirty days or when the person who has lodged the complaint is dissatisfied with the decision, he may institute a court case within sixty days from the date the decision has been given or the deadline for decision has elapsed.⁵¹

When we consider the right of information in this proclamation it is stated that any person engaged in an activity pertaining to any of the provisions of this proclamation or any other related law shall provide any information on his activity as required by the authority or the relevant regional environmental agency that means the environmental agency shall have access to all environmental data and information.⁵²

4. Environmental protection organs establishment proclamation No. 295/2002

When we see the main objective of this proclamation it is assigning responsibilities of environmental development, protection, regulation and monitoring by avoiding conflicts of interests and duplications of efforts powers and duties of the authority.

The proclamation has provided provisions on the non-formal and formal environmental education provided to the public, it states that promote and provide non-formal environmental education programs and cooperate with the competent agencies with view to integrating environmental concerns in the regular educational curriculum.⁵³

⁵⁰ Environmental Pollution Control Proclamation, 2002, Federal Negarit Gazzeta, proclamation No. 3009, 9th year, No. 12, Art 11(1) [Hereinafter referred to as: proclamation No. 300/2002]

⁵¹ Proclamation No. 300/2002, Art. 11(2)

⁵² Id, Art. 19(1)(2)

⁵³ Environmental protection Organs establishment proclamation, 2002, Federal Negarit Gazzeta, proc, no 295, 9th year, no. 7 Art 6(17) [Hereinafter referred to as: proclamation No. 295/2002]

The authority also has the responsibility to coordinating measures to ensure that the environmental objectives provided under the constitution and the basic principle set out in the environmental policy of Ethiopia are realized and also the environmental authority has the responsibility to prepare, review and update or as necessary, cause the preparation of environmental policies strategies and laws in consultation with competent agencies, other concerned organs and the public at large up on approval monitoring and enforce their implementations.⁵⁴

5. Freedom of the Mass Media and Access to Information Proclamation No. 590/2008

The right of information is one of the prerequisite parts of the right of public participation in the environmental protection. The preamble part of the proclamation, affirming it as the fundamental importance in a democracy, transparent conduct of government affairs and, in particular, the right of individuals to access information held by public bodies. Determined to promote and consolidate the values of transparency and accountability in the conduct of public affairs, as guaranteed by the constitution, and to impose a legal obligation on public officials to facilitate access to individuals and the mass media to information so that matters of public interest may be disclosed and discussed publicly.⁵⁵

And there is the provision of the proclamation which states about the right of information by stating that; all persons have the right to seek, obtain and communicate any information held by public bodies, excepts as expressly provided for by this proclamation and also the right to be and to obtain information from any public body by means of inspection, taking extracts and notes, certified copies of any records of such public authority, diskettes, floppies or any other electronic mode or through print-outs where such information is stored in computer or in any other device.⁵⁶ And also nothing limit the power of public bodies to provide access to information on an informal basis.⁵⁷

⁵⁴ Proclamation No.295/2002,Art, 6(1)(2)

⁵⁵ Freedom of the mass media and access to information proclamation, 2008, Federal Negarit Gazette, proclamation No.590, At the preamble part of the Proclamation.[Here in after referred to as:proclamation No.590/2008].

⁵⁶ Proclamation No.590/2008, Art, 12(1)(2)

⁵⁷ Id, Art(3)

3.2.3. Ethiopian Environmental guidelines and policy on the Public participation

1. Environmental Impact Assessment Guideline Document may 2000

In the Environmental Impact Assessment the right to public participation is one of its objectives and principles. Public participation in environmental impact assessment requires the participation of all interested and affected parties and they had the opportunity to participate meaning fully in the environmental impact assessment process.⁵⁸ There are a number of potential role players in an EIA one of it is public participation as interested and affected parties

Interested and affected parties or public are utilized as input and comments at various stage in the EIA process. In accepting the responsibility to participate, Interested and affected parties should ensure that their inputs and comments are provided within the specified (reasonable) time limit set by the proponent and his/her consultant.⁵⁹

The competent governmental agency is responsible for ensuring that the proponent consultant companies with the requirements of the EIA process and also in the environmental impact assessment the competent governmental agencies should provide adequate information for the public at large.⁶⁰

2. Environmental Impact Assessment Procedural Guideline November 2003

This Environmental Impact Assessment procedural guideline incorporates responsibility of environmental agency and as well as public (Interested and affected parties).

The Environmental Agency has the responsibility to make sure that;

- ❖ The public, especially affected communities are given meaningful opportunity in the EIA Process.
- ❖ Views, concerns and position of Interested and affected parties are taken into account during assessment, reviewing, auditing and at all stages of decision making.

⁵⁸ Ethiopian Environmental Assessment guideline document, may 2000, p-1

⁵⁹ Ibid

⁶⁰ Ibid

- ❖ All processes in EA administration is made in transparent, participatory and accountable manner. Appropriate Support is made available to build capacity and create awareness on E.A. etc.⁶¹

In accepting the responsibility to participate, Interested and affected parties should ensure that their inputs and comments are provided within the specified (reasonable) time limit set by the proponent and his/her consultant.⁶² The governmental environmental agency should provide adequate Environmental Impact Assessment information for the public at large.⁶³

The guideline identifies the interested and affected parties (IAP) as local communities, the work force, customers and consumers, environmental interested groups and the general public. Interested and affected parties are expected to.

- ❖ Provide Comments at various stages of EIA with reasonable time frame
- ❖ Work in partnership with environmental agencies and proponents.
- ❖ Act and lobby in good faith, knowledge, reason and in a cooperative manner and use all means and facilitate to ensure fairness in EA administration.
- ❖ Follow and monitor challenges and inform the environmental and sectorial agencies and local administration the occurrence of adverse incidence or any other grievance in course of Implementation of a Project or public instruments
- ❖ Advocate and uphold the principle and values of environmentally sustainable development.⁶⁴

3. Environmental Policy of Ethiopia

1. The Resource Base and the need for a policy

The environmental policy of Ethiopia incorporates the right of public participation by stating community participation and the environment. The policies objectives in perspective of community participation and the environment is to ensure that all forms of environmental and

⁶¹ Ethiopian Environmental guide line November 2003, p-3

⁶² Ibid

⁶³ Ibid

⁶⁴ Ibid

resource development, management, evaluation are should be under taken based on the decision of the resource users and managers.⁶⁵

The other objectives of the policy are to ensure that information should flow among the federal, regional states and the people at the grassroots level. And also to enhance effective methods of popular participation in the environmental planning and implementation in the resource use and management project and programs.⁶⁶

To develop the necessary legislation, training and financial support to empower local communities so that they may acquire the ability to prevent the manipulates impositions of external decisions in the name of participation and to ensure genuine grass roots decisions in resources and environmental management⁶⁷.

CHAPTER FOUR:

4. ANALYSIS AND INTERPRETATION OF RESEARCH DATA

4.1, The right of public participation for Environmental protection in DebreMarko city: The Law and The Practice.

According to environmental protection organs establishment proclamation the environmental authority organs has the powers and duties to promote and provide non-formal environmental education programs to the public at large on environmental protection.⁶⁸ Whereas when we consider the practice of providing non-formal environmental education and creating awareness

⁶⁵ Available at:http://thereddesk.org/sites/default/files/environment_policy_of_ethiopia_1.pdf(Accessed on December 24,2016) p- 3

⁶⁶ Ibid

⁶⁷ Ibid

⁶⁸ Environmental Protection organs Establishment Proclamation,2002,Federal NegaritGazzeta, proclamation.No.295, 9th year,No,7,Art 6(17)[Here in after reffered to as: proclamation No.295/300]

on the environment to the public which is conducted by Debre Markos city Environmental protection office by preparing different documents on the environmental protection and then by calling public meeting in collaboration with different Kebele's administration of the city and also giving environmental awareness by the city administration mini media and by celebrating environmental day annually in the city May, 28 in this day different pamphlets were prepared which can give environmental education and awareness for the public however giving environmental education and awareness in the city is unsatisfactory and very limited due to this there is no widest creation of public awareness in the city most of time this is due to lack of commitment and giving due consideration by the relevant environmental authorities of public officials and also the public has not enough awareness about environmental protection and also most of the individual persons in the city they only considering their own financial income not for the protection of their environment.⁶⁹

As we have seen in the solid waste management proclamation urban land administration has responsibility to planning and carrying out public awareness raising activities for the protection of the environment on the solid waste management.⁷⁰ Whereas when we see the practice of carrying out public awareness on the solid waste management it is conducting by calling public meeting and then cleaning the environment from solid waste to protect the environmental healthy on certain days in the year especially when the environmental day is celebrated in the city on the may, 28 annually, on this day giving public awareness on the cleaning environment from solid waste is conducted and also by participating of the public on the cleaning the environment from solid waste. The problems in the cleaning solid waste from the city is it is lack of public awareness on the solid waste management most of time the public do not give due consideration on the cleaning of solid waste from their area and also losing solid wastes on the public road, market area etc, in which people gathered densely and also government environmental agencies, they are not give due consideration for the environmental protection and public health and they are not exercise their full responsibility and they have lack of commitment and due consideration in giving of public awareness on the solid waste management and also in

⁶⁹ Interview with Ato Atnafu Molla, Debre Markos city urban land administration and Environmental protection, Impact assessment and Control officer, on the public participation and awareness creation on environmental protection November, 28, 2016

⁷⁰ Solid waste management proclamation, 2007, Federal Negarit Gazzeta, proclamation.No.513, 13th year, No.13, Art 5(4)(d)[Here in after referred to as: proclamation No.513/2007]

participating the public on the environmental protection and in cleaning solid wastes from their area.⁷¹

I have observed in some places of the city in perspective with solid wastes management, as I have observed around Debre Markos university particularly around summer's land recreational center there are accumulation of waste material even around the campus, this accumulation of waste material ultimately pollute the environment. From this assertion, it is obvious that, there is lack of community participation and lack of concerned governmental authority to protect the environment from pollution.

Apart from the above mentioned area, I have tried to observe especially around East Gojjam income administration branch office, around there, there are accumulation of solid waste material and different individuals and public officials is passing through this area since the area is center for the east gojjam zone administration of different sectors office and this endanger public health and pollute the environment. As it is clearly stipulated under FDRE Constitution, 1995, individuals peoples have the right to live in a clean and healthy environment on the other hand the state is under duty to make the environment clean and healthy whereas the concerned environmental authorities in the Debre Markos city fails to do so and also there is lack of public participation around that area.⁷² Generally the areas I have observed it seems that there is lack of government organ environmental agencies involvement to protect the environment from the pollution and this indirectly creates lack of public participation.

In the 1995 of FDRE Constitution it is stipulates that peoples have the right to full consultation and to the expression of view in the planning and implementation of environmental policies and projects that affect them directly.⁷³ And also the authority or the relevant regional environmental agency shall make any environmental impact study report accessible to the public and solicit comments on it.⁷⁴

⁷¹ Interview with Ato Belay Zeleke, urban municipality and sanitation and beauty officer at the Debre Markos city, *on the public participation and awareness creation toward solid waste management November on 28, 2016*

⁷² Federal Democratic Republic of Ethiopian constitution of 1995, Art, 43(1)

⁷³ Ibid, Art (43)

⁷⁴ Environmental Impact Assessment Proclamation, 2002, Federal Negarit Gazette, proclamation No. 299, 9th year No. 11, Art 15(1) [Here in after referred to as: proclamation No. 299/2002]

Whereas when we see the practice of informing and consulting the public in relation to the Environmental Impact Assessment, it is most of time the Environmental Impact Assessment issues are not accessible to the public and usually it is implemented only between the City Environmental protection office and the proponents (owners of the projects). When we consider the steps of the EIA which is under taken by the Debre Markos City Environmental protection office in collaboration with urban administration severally and jointly will evaluate the Environmental Impact Assessment which is prepared by the owners of projects and different investments (proponents). If the Environmental Impact assessment evaluation stipulates that it will harm and endanger the environment the City Environmental protection office will inform the proponents to prepare environmental mitigation documents which can enhance environmental protection.⁷⁵

This environmental mitigation will be evaluated by the city Environmental protection office and after the evaluation, the city environmental protection office will put his comment on the environmental mitigation and follow the proponent as long as not to pollute the environment. If the proponent does not follow the mitigation standard, the city environmental protection office will order the proponents to guide his projects and lead it with environmental friendship standards and if the proponent is not much with environmental friendship and harming the environment, the environmental protection office will give warning to the proponent and after the warning is given, the case may lead to the court proceeding when the proponent is continued to harm the environment. Whereas generally when we consider the practice of the EIA, most of time the public is not participate in the environmental impact assessment of the proponent and concerned environmental authorities have lack of commitments to enhance the public participation in the EIA and failure of the city Environmental protection office to access information and to bring the public participation in the Environmental impact assessment.⁷⁶

Generally environmental laws, guidelines and policy are not properly implemented in the city and this the ineffective implementation of Environmental law has caused the violation of right to

⁷⁵ Interview with Ato Atnafu Molla, Debre Markos city Urban and administration and Environmental protection, impact assessment and control officer, on public participation and awareness creation on EIA, on November, 28, 2016

⁷⁶ Ibid

participation and the right to clean and healthy environment protected under FDRE Constitution and subsidiary laws.

CHAPTER FIVE:

5. CONCLUSION AND RECOMMENDATION

5.1. CONCLUSION

Public participation is normally the participation of individuals, governmental and non-governmental organizations on the environmental protection. There are various problems in the public participation among that it is lack of initiation and technical support for the public by the concerned environmental authorities and also the public does not have the experience in the participatory process and lack of awareness for the environmental protection.

We have mentioned different levels of public participation these are: Information, Consultation, Involvement, Collaboration, and Empowerment. And also we have considered Ethiopian environmental legal framework of different proclamations, guidelines and policy. We have also

illustrates major international Conferences and Conventions of Stockholm conferences of 1975, Rio declaration of 1992, convention on Desertification and Convention on the Climate change.

The research statement of the problem is, environmental government authorities are not give due consideration for the right of public participation on the environmental protection and also lack of access to information and lack of providing awareness to the public by the concerned environmental authorities. And also we have seen the objectives of the research; to inform and to make initiate the relevant governmental environmental authorities about the implementation of public participation. And the other objectives is to find out the efforts if any made by the relevant governmental environmental authorities to enhance public awareness of public participation and also finally to make recommendations by assessing laws and practices.

We have considered significance of the research; it will remind and initiate environmental authorities to give due consideration for the right of public participation on the environmental protection and it will enhance their commitment and implementation of environmental protection.

The research used qualitative non-documentary research design and also primary and secondary sources are used in this research, from primary sources Interviews from the relevant environmental governmental authorities and field observation is taken into account and as secondary sources books, different written materials, and various sources from Internet accesses are used. In the analysis of the law and the practice of the right of public participation in environmental protection in the city of Debre Markos it has analyzed in perspective of different Ethiopian environmental law, the environmental protection organs establishment proclamation stated that the environmental authority has the responsibility to promote and provide non-formal environmental education programs for the public and also urban administration has responsibility to planning and carrying out public awareness for the protection of the environment. Whereas when we consider the practice in the city by preparing different documents on the environmental protection and by calling public meeting in collaboration with different kebele's of the city and also by giving environmental awareness by the city mini media and by celebrating environmental day annually may 28. However providing non-formal environmental education and creating public awareness is unsatisfactory and very limited.

I have used field observation in some places of the city especially around the university and around the East Gojjam Administration office, around there, there are accumulation of waste material it ultimately pollute the environment, from this assertion, it is obvious that, there is lack of community participation and lack of concerned governmental authority to protect the environment from the pollution.

The implementation of environmental impact assessment in the Debre Markos City it is by Environmental protection office of Debre Markos city in collaboration with the city urban administration will evaluate the environmental impact assessment prepared by the proponents and order the proponent to prepare environmental mitigation document and after the comment on the Environmental mitigation and the environmental agency follow up the proponent and If the proponent harm the environment and do not match with the environmental mitigation, the concerned environmental authorities will give last warning to the proponent and again if the proponent is polluting and harming the environment the cease leads to court.

5.2. RECOMMENDATION

According to the research findings the researcher recommends the following implications

- ❖ The study recommends that the Debre Markos city Environmental protection office should prepare a widely an Environmental education and awareness creation plat form for the public at large, in preparing such as informal small group meeting in each kebele's of the city on the protection of the environment and also by preparing , Focus group, Different workshops, Citizen advisory committees, and Environmental site visits, to participate the public on the environmental protection.
- ❖ Theurban administration with environmental protection of the city should encourage the public to participate on the cleaning of solid wastes from their area and prepare the installations of marked waste bins on thestreets in public areas and also awareness creation should provide to the public how to use it and also should implement collection

of solid wastes from waste bins with sufficient frequency to prevent overflow of solid wastes and pollution.

- ❖ On the implementation of Environmental impact assessment in the city Environmental protection office jointly and severally with the city administration should make impact study report accessible to the public and solicit comment on it and also participate and consult the public in the each and every stage of implementation of projects that affect the environment and the public.
- ❖ The Environmental Protection office should be welcome the public to give any environmental information
- ❖ The non-governmental organizations(NGO) should participate in environmental protection and should be encouraged by the governmental environmental bodies

BIBLIOGRAPHY

Different books

1. Aarhus Convention, 2009, UK. Department of the Environment and Transportation
2. Benimadhab Chatterjee, Environmental laws implementation, 2nd ed., pub. By Deep Publications pvt ltd, 2002
3. Girmachew Alemu, Essay on Environmental rights, Vol, IV July, 2012
4. Gouri Surech, Environmental studies and ethics, IK, International publishing House, 2007
5. Thomas Deiyz, Public participation in Environmental assessment, The National Academic press, Washington DC, 2008

Laws, Guidelines and Policy:

1. Environmental Impact Assessment proclamation No. 300/2002
2. Environmental protection organs establishment proclamation No. 295/2002
3. Environmental pollution control proclamation No. 300/2002
4. Environmental Impact Assessment Guideline Document may 2002
5. Environmental Impact Assessment procedural Guideline November 2003
6. Environmental policy of Ethiopia
7. Freedom of the mass media and access to information proclamation No. 590/2008
8. The FDRE Constitution of 1995

Interview with Concerned bodies:

1. Ato Atnafu Molla, Debre Markos City Urban land administration and Environmental Protection, Impact Assessment and control officer, on November, 28, 2016.
2. Ato Belay Zeleke, Debre Markos city municipality, sanitation and beauty officer on November, 28, 2016

Websites:

1. www.Intellitics.com/blog/03/24/what-is-public-participation
2. www.preservearticles.com/201102244196/rol-of
3. <http://www.epa.gov/International-cooperation/public> participation-guide-Introduction-public-participation
4. www.biodiversity.ru/coast learn/pp-eng/benefit.html
5. [www.unep.org/documents.multilingual/default.asp? Document=97&article=1503](http://www.unep.org/documents.multilingual/default.asp?Document=97&article=1503)
6. www.globalissue.org/articles/521/on-framework-convention-on-climate-change
7. http://thereddestdesk.org/sites/default/files/environment_policy_of_ethiopia_1.pdf

APPENDIX 1

Interview Format

1. Do the relevant governmental authorities of the environment have the commitment to enhance and implement the right of public participation?
2. What kinds of activities have been taken for the enhancement of public awareness on the right of public participation?
3. Is there proper implementation of the right of public participation for the environmental protection in the city?
4. What are difficulties in disseminating information to the public by governmental bodies?
5. By what mechanism you disseminate information to the public?
6. Which type of environmental protection peoples most of time participates?
7. What is the role of the public in the environmental impact assessment of environmental protection of the different projects in the city?

8. The governmental environmental agency would make any environmental impact study report accessible to public to obtain public opinion?